



DECISION

Complaint No.: POS/2553/KE-166/2024

Complainant: Prof. Qazi Tariq Ali, Retired Assistant Professor, House No. B-251/1, Block-14, Gulistan-e-Jauhar, Karachi.

Agencies Complained Against: 1. Shaheed Zulfiqar Ali Bhutto University of Law (SZABUL)
2. Universities & Boards Department
3. Law, Parliamentary Affairs & Criminal Prosecution Department
4. Finance Department

Investigation Officer: Syed Farrukh Habib, Director, Regional Office Karachi (East)

SUBJECT: ALLEGED DELAY IN PAYMENT OF PENSIONARY AND SERVICE DUES.

THE COMPLAINT

Prof. Qazi Tariq Ali, in his complaint dated 08.05.2024, stated that he was appointed as Deputy District Attorney in the Law Department, Government of Sindh, on 14.02.2004 through Sindh Public Service Commission. His services were later transferred to the Criminal Prosecution Service as Deputy District Public Prosecutor (BPS-18). In June 2014, he applied through proper channel for the post of Assistant Professor (BPS-19) at Shaheed Zulfiqar Ali Bhutto University of Law (SZABUL) with permission of the Law Department. After selection, he joined SZABUL on 08.04.2015 while retaining lien on his parent department post for the prescribed period. He retired on superannuation on 07.09.2023. The complainant alleged that prior to his retirement, SZABUL requested the Law Department and Accountant General Sindh to process his earned leave, GP Fund, pension contribution, and gratuity. Such pension contribution, complainant stated, was calculated and sanctioned by the Finance Department, and paid to SZABUL. However, after his retirement, SZABUL claimed that the amount received on account of Pension Contribution from GoS was far less than anticipated and calculated by the University, as per capitalized value of Pension. It therefore, demanded a huge additional amount, from Law Department, GoS and upon non release of such demand had withheld his pensionary benefits. He therefore, solicited intervention of this office to get his pension released.

PROCEEDINGS

2. The complaint was admitted after condoning delay under Section 10 of the Establishment of the Office of Ombudsman for the Province of Sindh Act, 1991, and the mandatory affidavit on Form "A" along with supporting documents was obtained. Reports were called from the concerned agencies.

3. The Registrar, SZABUL, vide letter dated June 2024, reported that an amount of Rs.820,999/- was received from Accountant General Sindh towards pension contribution for the complainant's service rendered from 14.02.2004 to 08.04.2015 with the Law Department, Government of Sindh. However, upon applying its own formula for final calculation of pension contribution, the University found the amount to be short and accordingly took up the matter with the Law Department vide letter dated 29.12.2023.

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4. The University clarified further that as per its calculation based on capitalized value of Pension, the actual liability of the Law Department amounted to Rs.10,209,316/-, comprising capitalized value of pension Rs.8,180,474/- and gratuity Rs.2,028,842/-. Against this liability, only Rs.820,999/- had been received, leaving a balance of Rs.9,388,325/-. SZABUL also placed on record that it had already paid its own share amounting to Rs.4,296,141/-, including gratuity, leave encashment, GP Fund, and anticipatory pension. It was further contended that under Section 8(i) of the SZABUL Employees' Pension Statutes, 2013, final sanction of pension in BPS-17 and above cases rests with the Syndicate. It stated that only 80% anticipatory pension and commutation had been paid and final pension would be released after receipt of the remaining contribution.
5. The complainant, in his rejoinder dated 18.07.2024, stated that withholding of his pension on the basis of alleged short contribution was illegal, arbitrary, and contrary to settled law. He contended that the dispute, if any, was between departments and that SZABUL had no lawful authority to deprive him of pension.
6. Subsequently, SZABUL, vide letter dated 30.08.2024, revised its figures and reported that the contribution received from the Law Department amounting to Rs.820,991/- was short against the actual liability of Rs.7,825,535/-, comprising capitalized value Rs.5,796,693/- and gratuity Rs.2,028,842/-, leaving a balance of Rs.7,004,544/-. It was further reported that the complainant's total monthly pension entitlement was Rs.96,633/-, out of which 80% anticipatory pension for the period September 2023 to February 2024 amounting to Rs.445,800/-, along with 80% commutation/gratuity of Rs.1,223,362/-, had been paid.
7. The Office of AG Sindh vide letter dated 29.08.2024, worked out the amount of capitalized value as Rs. 5,802,387/- on the basis of complainant Mr. Qazi Tariq Ali's service period with Government of Sindh of 134 months. It observed that the said amount may be deposited into SZABUL Treasury through challan.
8. The Section Officer (P-I), Law Department, vide letter dated 04.09.2024, forwarded such correspondence from the Accounts Officer, AG Sindh, stating that the complainant's service period comprised 134 months and that the capitalized value of Rs. 5,802,387/- may be deposited in SZABUL's treasury.
9. Upon a query from the Finance Department, vide U.O. letter dated 02.10.2024, as to why the capitalized value was re-submitted, when Rs.820,991/- had already been sanctioned and whether the said amount had been adjusted. The Accountant General Sindh, clarified vide letter dated 19.11.2024, that the capitalized value of Rs.5,802,387/- was calculated on the basis of figures supplied by SZABUL and that the previously sanctioned pension contribution of Rs.820,991/- was not included therein.
10. The Finance Department vide letter dated 23.12.2024 observed that Law Department has still not clarified that when Finance Department had already sanctioned pension contribution in favour of Mr. Qazi Tariq Ali amounting to Rs. 8,20,991/- why the Law Department and AG Sindh resubmitted capitalized value amounting to Rs. 58,02,387/-. The Finance Department asked the Law Department to seek clarification from SZABUL and then resubmit the calculation sheet duly verified by AG Sindh with proper justification.

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11. The Law Department, vide letter dated 24.03.2025, informed that the Finance and Planning Committee in its meeting held on 03.05.2024 had suggested to the SZABUL's syndicate that entire outstanding amounting SZABUL's share in lieu of commutation and pension be transferred to the office of A.G Sindh and accordingly the commutation and Pension to be drawn by Mr. Qazi Tariq Ali directly from AG Sindh.

12. However, the SZABUL Syndicate in its meeting held on 24.12.2024 did not approve such proposal of FPC and decided that since pension approval in case of Mr. Qazi Tariq Ali involved contribution from multiple departments including his previous department, which has not yet provided its share of funds therefore, the approval of pension benefits would be premature until all department involved have confirmed their share and performed their financial responsibilities.

FINDINGS

13. I have perused all the record, correspondence, reports and rejoinders, the following findings are recorded and have observed that:

- a) The complainant joined SZABUL through proper channel after serving under the Government of Sindh and retired on superannuation on 07.09.2023. His entitlement to pensionary benefits is not disputed by any agency.
- b) The Finance Department/AG Sindh initially sanctioned and released Rs.820,991/- as pension contribution for the complainant's service under the Law Department. Subsequent recalculations of capitalized value gave rise to confusion and conflicting demands between SZABUL, Law Department, Finance Department and AG Sindh.
- c) SZABUL has released some portion of pensionary and service dues to the complainant, including anticipatory pension, partial commutation, leave encashment and GP Fund. However, full pension and remaining commutation have been withheld. Until release of Pension Contribution Share by Government of Sindh as per SZABUL's formula of capitalized value of Pension.
- d) The continued non-release of full pension is purely the result of lack of coordination and clarity between SZABUL, Law Department, Finance Department and AG Sindh regarding pension contribution and its assessment on capitalized value.
- e) The complainant has been deprived of his pensionary benefits due to inaction by these departments. Pension is a vested right, and its withholding on administrative pretexts constitutes mal-administration.
- f) All concerned agencies have contributed to delay and confusion. While SZABUL has partially discharged its obligations, the Law Department and Finance Department of Government of Sindh have failed to conclusively resolve the contribution issue in a timely manner.
- g) The prolonged withholding of full pension and commutation for over TWO YEARS constitutes maladministration under Section 2(2) of the Ombudsman Act, 1991.

DECISION

14. In view of the foregoing findings, the established principles of pension law, and in exercise of powers conferred under section 11 of the Establishment of the Office of Ombudsman for the Province of Sindh Act, 1991 (as amended), I hereby dispose of the complaint in following terms:

- a) The Vice Chancellor, SZABUL is directed to finalize and release the complainant's full pension, balance commutation, and all remaining dues immediately, without linking payment to further correspondence or reconciliation.
- b) The Law Department, Finance Department, and Accountant General Sindh shall reconcile pension contribution and capitalized value inter se within 30 days, after duly adjusting the amount already sanctioned.

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- c) It is clarified that no recovery shall be made from the complainant, nor shall his pension be withheld on account of departmental disputes.
- d) Compliance report shall be submitted within 30 days.

Given under my hand and seal of the office



Sd /-
(Muhammad Sohail Rajput)
Sitara-e-Imtiaz. PAS
Ombudsman Sindh

Karachi, dated 26th. 03, 2026

